

ORDER FORM

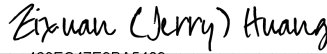
This Order Form ("Order Form") is entered into as of [10-29-2025] ("Effective Date") by and between **Handshake AI Solutions, LLC** ("Handshake") located at 225 Bush Street, Floor 12, San Francisco, CA 94104 ("Handshake"), and **Zixuan Huang**, ("Contractor") and is subject to the attached Independent Contractor Terms and Conditions (the "Terms and Conditions") by and between the undersigned parties dated [10-29-2025]. Capitalized terms used but not defined in this Order Form shall have the meanings set out in the Terms and Conditions.

- 1. Services. Contractor shall provide the below described Services at the rates set forth below (the "Rates") to perform the Services that Handshake may request from time to time (the "Services"). "Contractor" means Contractor or Contractor's employees or approved third parties deployed for the performance of the Services.

Contractors will be focused on but not limited to the review of data annotation tasks and review of STEM specialists work product in their domain of expertise. Tasks may be relevant to both internal and external projects. Their work will be managed by the Handshake AI Operations team.

- 2. Handshake Requests. Contractor shall perform Services in accordance with Handshake's requests for Services.
- 3. Delivery. Contractor shall perform and deliver the Services in accordance with specifications provided by Handshake or its affiliates or customers of Handshake. Handshake may change such specifications from time to time upon notice to Contractor. Contractor shall perform the Services in accordance with any such agreed upon changes.
- 4. Rates. Handshake shall pay Contractor \$80.00 /hour for the Services.
- 5. Equipment. Except as otherwise expressly provided in this Order Form, Contractor is responsible for providing the facilities, equipment, software, technical knowledge, expertise and other resources Contractor deems necessary to provide the Services at no additional charge.
- 6. Payment. Contractor shall provide Handshake with a monthly invoice indicating the Fees due for the Services provided hereunder along with the documentation supporting the expenses incurred in such month. Such invoice shall be due Net 30 upon Handshake's receipt of it.
- 7. Term. This Order Form shall begin upon the Effective Date as defined below and terminate one (1) year from the Effective Date unless otherwise terminated in accordance with the Terms and Conditions or mutually agreed in writing to be extended.

ACCEPTED AND AGREED TO BY:

HANDSHAKE HANDSHAKE AI SOLUTIONS, LLC Sign:  Print Name: Yang Zhao Title: Head of Business, Handshake AI	CONTRACTOR Signed by: Sign:  468EC47E3BA5403... Print Name: Zixuan Huang
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These Independent Contractor Services Terms & Conditions (these “**Terms**”), together with the ordering document for the Services (defined below) (including any amendments or attachments thereto, the “**Order Form**”) entered into by and between you (“**Contractor**”) and Handshake AI Solutions, LLC (“**Company**” and together with Contractor, each a “**Party**” and collectively the “**Parties**”), form an agreement (this “**Agreement**”) by and between Company and Contractor regarding the Services set forth in the Order Form. In the event of a conflict between the Order Form and these Terms, the terms of the Order Form shall control. Capitalized terms used but not defined herein shall have the meanings ascribed to such terms in the Order Form.

1. DEFINITIONS. As used in this Agreement:

1.1 “Confidential Information” means (a) any and all information of Company or Company’s clients to whom Contractor provides the Services (including Work trade secrets, technical information, business forecasts and strategies, marketing plans, customer and supplier lists, personnel information, financial data, and proprietary information of third parties provided to Company in confidence), whether or not labeled or identified as “confidential” or “proprietary” and (b) any Work Product.

1.2 “Intellectual Property” means all Work Product, algorithms, application programming interfaces (APIs), apparatus, assay components, biological materials, cell lines, chemical compositions and structures, circuit designs and assemblies, concepts, Confidential Information, data, databases and data collections, designs, diagrams, documentation, drawings, flow charts, formulae, gate arrays, ideas and inventions (whether or not patentable or reduced to practice), IP cores, know-how, materials, marketing and development plans, marks (including brand names, product names, logos, and slogans), methods, models, net lists, network configurations and architectures, photomasks, procedures, processes, protocols, schematics, semiconductor devices, software code (in any form including source code and executable or object code), specifications, subroutines, techniques, test vectors, tools, uniform resource identifiers including uniform resource locators (URLs), user interfaces, web sites, works of authorship, and other forms of technology.

1.3 “Intellectual Property Rights” means all past, present, and future rights of the following types, including, without limitation, in any Work Product or other deliverable, which may exist or be created under the laws of any jurisdiction in the world: (a) rights associated with works of authorship, including exclusive exploitation rights, copyrights, moral rights, and mask work rights; (b) trademark and trade name rights and similar rights; (c) trade secret rights; (d) patent and industrial property rights; (e) other proprietary rights in Intellectual Property of every kind and nature; and (f) rights in or relating to registrations, renewals, extensions, combinations, divisions, and reissues of, and applications for, any of the rights referred to in clauses (a) through (e) of this sentence.

1.4 “Services” means the services to be performed and deliverables to be developed by Contractor from time to time, pursuant to an Order Form. The Services provided by the Contractor are supplementary and not integral to the Company’s primary business operations. The Contractor’s services are distinct and separate from the core business activities of the Company.

1.5 “Work Product” means all deliverables provided to Company or its third-party clients in connection with Contractor’s performance of the Services (collectively, Company’s “**Clients**”), including, without limitation, all (a) responses to Client questions and completed Services; (b) any discoveries, developments, concepts, designs, ideas, know how, improvements, inventions, trade secrets and/or original works of authorship, whether or not patentable, copyrightable or otherwise legally protectable, created or discovered by Contractor in connection with Contractor’s performance of the Services; and (c) any new product, machine, method, procedure, process, technique, use, equipment, device, apparatus, system, design or configuration of any kind, or any improvement thereon, created or discovered by Contractor in connection with Contractor’s performance of the Services.

2. ENGAGEMENT.

2.1 Performance of Services.

2.1.1 Contractor shall have full discretion to determine the methods, details, and means of performing the Services, in accordance with the terms of this Agreement and Client’s instructions. The Company shall not control or direct the matter or means by which the Contractor performs the Services, including the time and place the work is performed. Contractor will provide, at Contractor’s own expense, a place of work and all equipment, tools, and other materials necessary to provide the Services. Contractor is free to perform services for other clients and is encouraged to do so.

2.1.2 In order to perform the Services, Contractor may be required to use third-party sites, including, without limitation, Clients’ websites, mobile applications, platforms, or devices or other platforms to communicate about the Services (collectively “**Third-Party Systems**”), and Contractor may need to register for and maintain user accounts on multiple Third-Party Systems (all such accounts collectively, “**Contractor Accounts**”). Contractor is responsible for all activity that occurs under any Contractor Account. Contractor shall, at all times, maintain the security and secrecy of all Contractor Account usernames and passwords. Contractor may not allow third parties to use Contractor Accounts, and Contractor may not assign or otherwise transfer Contractor Accounts to any third-party. Company is not responsible or liable for the availability or accuracy of such Third-Party Systems, or the content, products, or services available from such Third-Party Systems. Links to such Third-Party Systems provided to Contractor are not an endorsement by Company of such Third-Party Systems.

2.1.3 Contractor shall perform the Services and develop any deliverables with accuracy and in accordance with any scope of work or other instructions provided. Contractor understands that repeated failure to meet these standards constitutes a breach of this Agreement. Company reserves the right to verify the accuracy of the Services and other deliverables. In addition to Company's right to withhold payment in full or in part, Company may also remove Contractor from projects or deactivate any Contractor Account based on a breach of this section.

2.1.4 Contractor shall determine in Contractor's sole discretion which Services to perform, and when, where, and how Contractor does so. Contractor's method of completing the Services or any deliverable remains at all times at Contractor's sole discretion. Contractor is not required to perform Services at any specified time or day.

2.1.5 Contractor shall provide all necessary tools or equipment needed to provide the Services. Contractor shall obtain any data network access necessary to use any Third-Party Systems.

2.2 Subcontracting.

2.2.1 Contractor will not subcontract or otherwise delegate any of its obligations under this Agreement, without Company's express prior written consent on a case-by-case basis. Upon receipt of such consent, before allowing any subcontractor to begin performing services, Contractor will enter into a binding written agreement with such subcontractor that protects Company's and Client's rights and interests to at least the same degree as this Agreement, including Sections 5 (Confidentiality) and 6 (No Conflicts). Contractor will be responsible for the direction and coordination of the services of each subcontractor. Company will have no obligation to pay any subcontractor.

2.2.2 Any subcontractor shall be approved by Company, in writing, in Company's commercially reasonable and exclusive discretion. Without limiting the generality of the foregoing, Contractor's subcontractor must (a) demonstrate a proven track record of delivering high-quality work within specified timelines and budgets; (b) possess relevant industry certifications; (c) comply with all applicable federal, state, and local regulations; (d) have the necessary qualifications and experience for the Services; (e) agree to maintain confidentiality and data protection standards at least as protective as those set forth herein.

3. INDEPENDENT CONTRACTOR RELATIONSHIP.

3.1 By signing up to provide Services to third-party Handshake clients, Contractor understands and agrees that Contractor is an independent contractor of Company and that Contractor assumes all liability for proper classification as an independent contractor or consultant based on applicable legal guidelines. Nothing contained in this Agreement is intended to constitute or create a contract of employment or agency relationship with Company, nor will it constitute or create the right or obligation to use or continue to use any Company resources. Company will have

no right to, and will not, direct, control, or supervise Contractor in connection with the Services that Contractor performs. Contractor will not at any time receive any benefits or other incidental perks of employment. Any payment made to Contractor by Company is for Services completed by Contractor or related thereto, as agreed between the parties, and such payments do not constitute regular salary or compensation for any other purpose. Contractor further agrees that Company is not restricting in any way Contractor's right or ability to perform services for others, including but not limited to, any employer, Contractor's own clients, or through any crowdsourcing service or any other means. Contractor will not represent Contractor to clients or anyone else as an employee or agent of Company. At all times, Contractor agrees and acknowledges that Contractor is an independent contractor of Company and will always represent Contractor as such. Contractor has no authority (and will not hold Contractor out as having authority) to bind Company, and Contractor will not make any agreements or representations on behalf of Company.

3.2 Contractor acknowledges and agrees that (a) Contractor is not entitled to unemployment insurance benefits from Company or any Client in connection with this Agreement or the Services, and (b) Contractor is solely responsible for filing any and all necessary tax filings and returns, and that Contractor is obligated to pay federal, state and local income tax on any monies paid pursuant to this Agreement.

4. PAYMENT; TAXES.

4.1 Payment. Upon (a) completion of the Services that Contractor has selected to provide and (b) verification that such Services have been accurately and otherwise adequately completed (in accordance with this Agreement), Company will transmit payment to Contractor for the amount specified and agreed to by Contractor in connection with the Services. Subject to applicable law, Company reserves the right to delay or suspend payment during any investigation into Contractor's compliance with this Agreement. A violation of this Agreement, in Company's sole determination, may result in non-payment to Contractor of some or all amounts accrued. It is Contractor's responsibility to ensure that Contractor has a payment method approved by Company to receive payments in US Dollars. Company will not reimburse Contractor for any expenses incurred in performing the Services.

4.2 Taxes. Handshake will not deduct from any payments to Contractor any amount for income tax withholding, Social Security or other social contributions, other taxes, or any other amount, except as provided by law. Contractor shall file any registration as a self-employed worker, independent contractor, sole proprietor, or similar designation available with the applicable tax authorities, in order to assure Contractor's proper payment of any

applicable taxes or other amounts as required by law, in connection with payments made for the Services.

5. CONFIDENTIALITY. During the activities contemplated by this Agreement and any Order Form, Contractor may become acquainted with confidential information of Company or a Client, including, but not limited to, technical information, designs, procedures, processes, configurations, formulas, discoveries, inventions, improvements, guides, concepts, ideas, new product, program, and promotional ideas, research and development, proprietary research data, techniques, know-how, instruction manuals, training materials, business plans and proposals, financial information, marketing plans and studies, pricing and sales information, the identity of and information concerning actual or potential customers, whatsoever, regarding any actual or potential customers, or other non-public commercial information (collectively, "Confidential Information"), through written, oral or visual means. Confidential Information shall also include this Agreement and anything contained in or discussed relating to this Agreement or any Order Form. Contractor agrees and acknowledges that all such Confidential Information is confidential to Company and shall not use the Confidential Information, except as required to fulfill its obligations under this Agreement and any Order Form, and shall not disclose the Confidential Information to any third parties. Contractor shall also limit access to the Confidential Information within its own organization only to those employees who need to know such Confidential Information in order to implement this Agreement and any Order Form and who are expressly obligated to maintain such Confidential Information in confidence and in accordance with the restrictions set forth herein. These obligations shall not apply to any Confidential Information received by Contractor which Contractor can reasonably demonstrate (a) was in the public domain at the time of receipt by Contractor; (b) entered the public domain after receipt by Contractor, but through no fault of Contractor; (c) except for the terms of this Agreement and information generated by the parties in the course of performance of this Agreement, was known by Contractor prior to its receipt; (d) is lawfully disclosed to Contractor by a third party that was not under an obligation of confidence to Company; or (e) which Contractor is compelled to disclose by law or legal process, provided Company is given prompt written notice of any such requirement and an opportunity to contest such disclosure. This confidentiality provision shall survive the expiration or earlier termination of this Agreement, until all Confidential Information disclosed hereunder becomes publicly known or made generally available through no action or inaction of Contractor.

6. NO CONFLICTS. Contractor will refrain from any activity, and will not enter into any agreement or make any commitment, that is inconsistent or incompatible with Contractor's obligations under this Agreement, including Contractor's ability to perform the Services. Contractor represents and warrants that it is not subject to any contract or duty that would be breached by Contractor's entering into or performing its obligations under this

Agreement or that is otherwise inconsistent with this Agreement.

7. OWNERSHIP OF DELIVERABLES.

7.1 Company shall own all Work Product and all Intellectual Property Rights, worldwide, whether or not currently and all other rights and interests to any and all Work Product and deliverables provided pursuant to this Agreement. All such Work Product and deliverables shall be considered "works made for hire" by Contractor and owned by Company upon creation. In connection with the foregoing, in consideration of Contractor's performance of the Services and Company compensating Contractor for Contractor's performance of such Services, Contractor hereby irrevocably assigns to Company all right title and interest throughout the world, including, without limitation, Intellectual Property Rights, in and to any Work Product.

7.2 If any Intellectual Property Rights, including moral rights, in the Work Product cannot (as a matter of law) be assigned by Contractor to Company as provided herein, then: (a) Contractor unconditionally and irrevocably waives the enforcement of such rights and all claims and causes of action of any kind against Company with respect to such rights; and (b) regardless of whether Contractor is permitted (as a matter of law) to make such waiver, Contractor unconditionally grants to Company an exclusive, perpetual, irrevocable, worldwide, fully-paid license, with the right to sublicense through multiple levels of sublicensees, under any and all such rights (i) to reproduce, create derivative works of, distribute, publicly perform, publicly display, digitally transmit, and otherwise use the Work Product in any medium or format, whether now known or hereafter discovered; (ii) to use, make, have made, sell, offer to sell, import, and otherwise exploit any product or service based on, embodying, incorporating, or derived from the Work Product; and (iii) to exercise any and all other present or future rights in the Work Product.

7.3 At Company's request from time to time, Contractor shall: (a) cooperate with and assist Company or its designee, both during and after the term of this Agreement, in perfecting, maintaining, protecting, and enforcing Company's or its designee's Intellectual Property Rights and other rights in the Work Product in any and all countries, and (b) promptly execute and deliver to Company or its designee any documents deemed necessary or appropriate by Company or its designee in its discretion to perfect, maintain, protect, or enforce Company's rights in the Work Product or otherwise carry out the purpose of this Agreement.

7.4 Contractor hereby irrevocably designates and appoints Company and its duly authorized officers and agents as Contractor's agent and attorney-in-fact to act for and on Contractor's behalf and stead to execute and file any such instruments and papers and to do all other lawfully permitted acts to further the application for, prosecution, issuance, maintenance or transfer of letters patent,

copyright, mask work and other registrations related to such Work Product.

8. CONTRACTOR REPRESENTATIONS AND WARRANTIES. Contractor represents, warrants, and covenants that:

8.1 Contractor will not, in the course of performing the Services, infringe or misappropriate, any Intellectual Property Right of any other person;

8.2 Contractor has full right, power, and authority to enter into and perform this Agreement without the consent of any third-party;

8.3 Contractor will refrain from any unethical conduct, will maintain high standards of professionalism, and will comply with all laws, regulations, and ordinances applicable to Contractor's performance of the Services and Contractor's other obligations under this Agreement, including export control laws, and has obtained (or before performing the Services will obtain) all governmental permits and licenses required for Contractor to perform the Services and Contractor's other obligations under this Agreement; and

9. INDEMNIFICATION. Contractor will indemnify and hold harmless Company and its affiliates, employees, and agents from and against any and all liabilities, losses, damages, costs, and other expenses (including attorneys' and expert witnesses' costs and fees) arising from or relating to any breach of any representation, warranty, covenant, or obligation of Contractor in this Agreement or any intentional misconduct or negligence by Contractor in performing the Services. In the event of any third-party claim, demand, suit, or action (a "Claim") for which Company (or any of its affiliates, employees, or agents) is or may be entitled to indemnification hereunder, Company may, at its option, require Contractor to defend such Claim at Contractor's sole expense. Contractor may not agree to settle any such Claim without Company's express prior written consent.

10. [RESERVED]

11. [RESERVED]

12. LIMITATION OF LIABILITY. IN NO EVENT WILL COMPANY BE LIABLE FOR ANY CONSEQUENTIAL, INDIRECT, EXEMPLARY, SPECIAL, OR INCIDENTAL DAMAGES ARISING FROM OR RELATING TO THIS AGREEMENT. COMPANY'S TOTAL CUMULATIVE LIABILITY IN CONNECTION WITH THIS AGREEMENT, WHETHER IN CONTRACT OR TORT OR OTHERWISE, WILL NOT EXCEED THE AGGREGATE AMOUNT OF FEES PAID OR PAYABLE BY COMPANY TO CONTRACTOR FOR SERVICES PERFORMED UNDER THIS AGREEMENT.

13. TERM; TERMINATION.

13.1 Term. This Agreement is effective until terminated as set forth herein. Contractor may deactivate any Contractor Account and terminate this Agreement at any time. Company may terminate this Agreement, deactivate or suspend any Contractor Account and access

to Third-Party Systems, or remove any Services listings at any time, immediately without prior notice for any reason. Upon any account termination or suspension, or the termination of this Agreement, Contractor's right to use the Third-Party Systems will cease, and Contractor will not be able to retrieve any information related to any Contractor Account. Company will issue a final payment for Services already completed.

13.2 Termination by Company. Company may terminate this Agreement at any time, with or without cause, effective immediately, upon notice to Contractor.

13.3 Termination by Contractor. Contractor may terminate this Agreement at any time, with or without cause, effective immediately, upon notice to Company.

13.4 Effects of Termination.

13.4.1 Survival. Sections 1 (Definitions), 3 (Independent Contractor Relationship), 5 (Confidentiality), 8 (Contractor Representations and Warranties), 9 (Indemnification), 12 (Limitation of Liability), 13.3 (Effects of Termination), Section 14 (Class Action Waiver), and 15 (General Provisions) will survive any termination or expiration or earlier termination of this Agreement. Termination or expiration of this Agreement will not affect either Party's liability for any breach of this Agreement that may have been committed before such expiration or termination.

13.4.2 Return of Company Property. Upon termination of this Agreement or earlier as requested by Company, Contractor will deliver to Company any and all Confidential Information, documents, prototypes, samples, and other materials (including all copies thereof) in Contractor's possession or control that contain, summarize, or disclose any Intellectual Property provided by or on behalf of Company.

14. DISPUTES

14.1 Arbitration. Company and Contractor shall resolve any disputes related to this Agreement or the Services (any "Dispute") through final and binding arbitration, except as set forth below.

14.2 Procedures. The American Arbitration Association (AAA) will administer the arbitration under its Commercial Arbitration Rules and the Supplementary Procedures for Consumer Related Disputes. The arbitration will be held in the United States, San Francisco, California, or any other location the parties agree to.

14.3 Arbitration Fees. The AAA rules will govern payment of all arbitration fees. Company will pay all arbitration fees for claims less than \$75,000. Company will not seek its attorneys' fees and costs in arbitration unless the arbitrator determines that Contractor's claim is frivolous.

14.4 Exceptions to Agreement to Arbitrate. Without first engaging in arbitration or the informal dispute

resolution process described above, either Company or Contractor (a) may assert claims, if they qualify, in small claims court in San Francisco, California and seek an amount up to the jurisdictional limit for individuals in such small claims court (notwithstanding any limitation on such damages set forth herein), or (b) may bring a lawsuit solely for injunctive relief (including, in the case of Company, to stop unauthorized use or abuse of the Services), or for infringement or material breach of intellectual property rights (for example, trademark, trade secret, copyright, or patent rights).

14.5 Class Action Waiver. Contactor hereby independently waives any right to bring or participate in any class action, private attorney general action, or other representative action, however denominated, in any way for any Claim against the other.

CONTRACTOR UNDERSTANDS THAT BY AGREEING TO THIS CLASS ACTION WAIVER, CONTRACTOR MAY ONLY BRING CLAIMS AGAINST COMPANY, ITS AGENTS, OFFICERS, SHAREHOLDERS, MEMBERS, EMPLOYEES, SUBSIDIARIES, AFFILIATES, PREDECESSORS IN INTEREST, SUCCESSORS AND/OR ASSIGNS IN AN INDIVIDUAL CAPACITY AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS ACTION, PRIVATE ATTORNEY GENERAL ACTION, OR OTHER REPRESENTATIVE PROCEEDING.

15. GENERAL PROVISIONS.

15.1 Governing Law; Venue. This Agreement is governed by the laws of the State of California without reference to any conflict of laws principles that would require the application of the laws of any other jurisdiction. The United Nations Convention on Contracts for the International Sale of Goods does not apply to this Agreement. Contractor irrevocably consents to the personal jurisdiction of the state and federal courts located in San Francisco County, California for any suit or action arising from or related to this Agreement, and waives any right Contractor may have to object to the venue of such courts. Contractor further agrees that these courts will have exclusive jurisdiction over any such suit or action initiated by Contractor against Company. Contractor also irrevocably waives any right Contractor may have to a jury trial.

15.2 Severability. If any provision of this Agreement is, for any reason, held to be invalid or unenforceable, the other provisions of this Agreement will be unimpaired and the invalid or unenforceable provision will be deemed modified so that it is valid and enforceable to the maximum extent permitted by law.

15.3 No Assignment. This Agreement and Contractor's rights and obligations under this Agreement may not be assigned, delegated, or otherwise transferred, in whole or in part, by operation of law or otherwise, by Contractor without Company's express prior written

consent. Any attempted assignment, delegation, or transfer in violation of the foregoing will be null and void. Company may assign this Agreement, or any of its rights under this Agreement to any third-party with or without Contractor's consent.

15.4 Notices. Each Party must deliver all notices, consents, and approvals required or permitted under this Agreement in writing to the other Party at the address listed on the signature page or email provided by the Parties to the other, by courier, by certified or registered mail (postage prepaid and return receipt requested), by a nationally-recognized overnight carrier or by email. Notice will be effective upon receipt or refusal of delivery. Each Party may change its address for receipt of notice by giving notice of such change to the other Party.

15.5 Legal Fees. The prevailing Party in any litigation between the Parties relating to this Agreement will be entitled to recover its reasonable attorneys' fees and court costs, in addition to any other relief that it may be awarded.

15.6 Remedies. Company's remedies for any breach of this Agreement by Contractor will include damages, injunctive relief, specific performance, and restitution. Contractor acknowledges that any breach of this Agreement by Contractor would cause irreparable injury to Company for which monetary damages would not be an adequate remedy and, therefore, Company will be entitled to injunctive relief (including specific performance). The rights and remedies provided to each Party in this Agreement are cumulative and in addition to any other rights and remedies available to such Party at law or in equity.

15.7 Construction. Section headings are included in this Agreement merely for convenience of reference; they are not to be considered part of this Agreement or used in the interpretation of this Agreement. When used in this Agreement, "including" means "including without limitation." Whenever Company's consent or approval is required under this Agreement, Company may grant or deny its consent or approval in its sole and absolute discretion. No rule of strict construction will be applied in the interpretation or construction of this Agreement.

15.8 Waiver. All waivers must be in writing and signed by the Party to be charged. Any waiver or failure to enforce any provision of this Agreement on one occasion will not be deemed a waiver of any other provision or of such provision on any other occasion.

15.9 Entire Agreement; Amendments. This Agreement is the final, complete, and exclusive agreement of the Parties with respect to the subject matter hereof and supersedes and merges all prior or contemporaneous communications and understandings between the Parties. No modification of or amendment to this Agreement will be effective unless in writing and signed by the Party to be charged.